

9:00 AM 19CV44187 Motion to File First Amended Complaint 07/10/2019 06/22/2021; 06/23/2021 Trial Confirmation Conferen

Ptff/Pet: Alberts, Ole; Dyken, Silas

Atty: Foley, Kenneth M.

Def/Res: Hurst, John C.; JTN Holdings Llc; NTJ Management Llc

Atty: Pro Se

TENTATIVE RULING: Plaintiffs Ole Alberts and Silas Dyken request leave to file a First Amended Complaint (FAC) to add a cause of action for intentional fraud based on the same set of operative facts alleged in the original Complaint. No opposition appears in the Court's file.

Motions for leave to amend are directed to the discretion of the court. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading...." (Code of Civ. Proc. § 473, subd. (a)(1).) The court's discretion is typically exercised liberally to permit amendment to the pleadings. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939.) However, the Court has discretion to deny leave to amend when it would not be in accordance with the spirit of the law and the ends of justice. (Dunzweiler v. Sup. Ct. of Alameda Cty. (1968) 267 Cal.App.2d 569.)

The Court finds that the FAC is based on the same set of operative facts alleged in the Complaint. The FAC appears, from the Court's review, identical to the Complaint except for the addition of a cause of action for intentional fraud. (See FAC at 4:12-5:4.)

Based on the foregoing, the motion is GRANTED. Plaintiffs are given 10 days' leave to file the FAC in the form attached as Exhibit A to the present motion.

The Clerk will provide notice of this Ruling to the parties. No further formal Order is required.

9:00 AM 19CV44187 Motion for Continuance of Trial 07/10/2019 06/22/2021; 06/23/2021 Trial Confirmation Conferen

Ptff/Pet: Alberts, Ole; Dyken, Silas

Atty: Foley, Kenneth M.

Def/Res: Hurst, John C.; Jtn Holdings Llc; Ntj Management Llc

Atty: Pro Se

TENTATIVE RULING: Plaintiffs Ole Alberts and Silas Dyken move for an order continuing the trial, currently set for June 23, 2021, to a new date to be determined by the Court, "if the granting of a Motion to Amend the Complaint so requires." (See Notice of Motion at 1:20-25.) No opposition appears in the Court's file. As the Court granted the Motion for Leave to File First Amended Complaint, Plaintiffs' Motion to Continue Trial is GRANTED. The Trial is continued to September 22, 2021, at 8:30 a.m. in Department 2, and remains scheduled as a one-day non-jury trial.

The Clerk will provide notice of this Ruling to the parties. No further formal Order is required.

9:00 AM 20CV44905 Motion to Set Aside Entry of Default of Walter F. Peters III 08/28/2020 09/01/2021 Case Management Conference

Ptff/Pet: Bruns, Alicia
Def/Res: Depner, Cathy

Atty: Abbott, John Anthony
Atty: Pro Se

TENTATIVE RULING: Defendant Walter F. Peters III, both as an individual and in his capacity as Trustee of the Walter F. Peters III 2017 Trust (Mr. Peters), moves, pursuant to Code of Civil Procedure section 473, for an order setting aside the default entered against him on November 4, 2020. Mr. Peters so moves on the grounds that the default was entered as a result of his mistake of fact and/or excusable neglect. No opposition appears in the Court's file.

The Court finds from the evidence presented that Mr. Peters was under a good faith belief that he had timely filed a pleading in response to the Complaint. (See Peters' Declaration at ¶¶ 5-6.) The Court had ordered this pleading stricken, as to Mr. Peters only, based on Mr. Peters' failure to pay a filing fee. (See Minute Order of November 3, 2020.) Default was entered against Mr. Peters on November 4, 2020. (See Entry of Default, Clerk's Judgment.) The Court is satisfied that, at the time Plaintiff obtained the default judgment, Mr. Peters was under the mistaken understanding that he had filed a responsive pleading.

Mr. Peters' application for relief from default is accompanied by a copy of the answer. (See Support Memorandum at Exh. E.)

The Court further notes that in her answer co-defendant Catherine Depner affirmatively alleges that, "Finn and Hannah belong solely to Ms. Depner, Mr. Peters does not or ever will own the dogs." (Answer at 1:22.) Based on the Court's reading of the Complaint, Plaintiff alleges that Mr. Peters is liable based on his ownership and management of the dogs Finn and Hannah. Thus, defendant Depner alleges facts through her answer, filed prior to the entry of default, which, if proven, would establish the nonliability of Mr. Peters. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2020) ¶ 5:263, p. 5-70: "A default judgment may be improper against one of several codefendants if the other has raised defenses which, if proven, would establish the nonliability of the defaulting defendant". [Emphasis in original.]) The Court finds that the interests of justice are served by granting the motion. (See Code Civ. Proc. §473, subd. (b).)

Based on the foregoing, the Court finds good cause for setting aside the default judgment and Defendant Peters' motion is GRANTED and the proposed answer will be filed

The Clerk will provide notice of this ruling to the parties. No further formal Order is required.